

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3386

By: Clinton

AS INTRODUCED

An Act relating to landlord and tenant; amending 41 O.S. 2021, Section 131, which relates to delinquent rent; requiring court-supervised mediation prior to a landlord terminating a rental agreement when minor children reside at the leased premises; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 41 O.S. 2021, Section 131, is amended to read as follows:

Section 131. A. If rent is unpaid when due, the landlord may bring an action for recovery of the rent at any time thereafter or the landlord may wait until the expiration of the period allowed for curing a default by the tenant, as prescribed in subsection B of this section, before bringing such action.

B. A landlord may terminate a rental agreement for failure to pay rent when due, if the tenant fails to pay the rent within five (5) days after written notice of landlord's demand for payment, except when there are minor children residing at the leased premises, in which case a court-supervised mediation must occur

1 prior to terminating a rental agreement. The notice may be given
2 before or after the landlord files any action authorized by
3 subsection A of this section. Demand for past due rent is deemed a
4 demand for possession of the premises and no further notice to quit
5 possession need be given by the landlord to the tenant for any
6 purpose.

7 SECTION 2. This act shall become effective November 1, 2026.

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